



U.S. Department
of Transportation

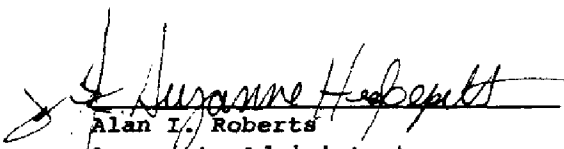
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9464 (EXTENSION)
ORIGINAL June 16, 1986
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9464 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 25 1993

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Broco, Inc.
Rialto, CA

April 2, 1993



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 9464
(CORRECTED COPY)

1. BROCO, Inc., Rialto, California, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of an explosive device for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a pest control device which has dimensions exceeding those authorized in 49 CFR, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from BROCO, Inc. dated June 7, 1985, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon, and supplemental letter dated May 27, 1986.

3. HAZARDOUS MATERIALS (Descriptor and Class). Explosive pest control device, Class C explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101) Explosive pest control device.

5. REGULATION AFFECTED. 49 CFR 173.100

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, passenger-carrying aircraft, cargo only aircraft.

7. SAFETY CONTROL MEASURES. Five devices shall be placed, head to toe, on a fiberboard card and placed in a heat sealed plastic bag. Ten of these bags shall be placed in a fiberboard box constructed of fiberboard of at least 200 pound test. The devices shall be arranged so that there is a sand barrier between any two explosive charges.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel and aircraft used to transport packages covered by this exemption.

c. No device shipped under this exemption may exceed 7 inches in length or 1.5 inch in outside diameter.

d. No device shipped under this exemption may contain more than 40 grains of explosive composition. The explosive composition is limited to aluminum powder, sulfur and potassium perchlorate.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as possible.

10. EXPIRATION DATE. June 30, 1987.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

JUN 16 1986

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation,
Research and Special Programs Administration, U.S. Department of Transportation,
Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FAA FHWA FRA USCG